

EXHIBIT BUNDLE

SITE ACCESS CONTROL DATA, CCTV AND COVERT MONITORING

Exhibit references	AC/1 (turnstile log 14.11.2023); AC/2 (badge register); CCTV/1 (retention note); DP/1 (internal memo on welfare cabin equipment)
Issues	Presence of individuals on site; reliability of access records; lawfulness of covert monitoring and admissibility of the product of it in the criminal, civil and tribunal proceedings.

PART 1 — TURNSTILE LOG, 14 NOVEMBER 2023 (extract, exhibit AC/1)

System: Chevron Site Access v6.2. Biometric verification was procured but was disabled on 4 September 2023 'pending resolution of a data protection query' (Meridian IT ticket 44219, never closed). Access therefore operates on card presentation alone.

Card / badge	Name on record	IN	OUT	Notes
MSL-0114	R. Delacroix-Hale	06:31	17:44	-
TL-0119	G. Pyle	06:48	15:12	Disputed — see D05 para. 9
TL-0127	A. Vasilenko-Pratt	06:49	16:02	Presented twice at 06:49 (0.8 s apart)
TL-0088	D. Aksoy	06:51	(no out)	Removed by ambulance
NSS-4471	T. Wieczorek	06:52	(no out)	-
NSS-4402	(agency, unnamed)	06:52	16:31	Northgate records unavailable
NSS-4419	(agency, unnamed)	06:53	16:29	Northgate records unavailable
MSL-0207	F. Kettleborough	09:21	18:10	-
VIS-0031	A. FERRIS (visitor)	09:34	12:05	Issued at gatehouse; signature in visitor book illegible
MSL-0166	K. Olusanya-Reid	(no in)	(no out)	Card not presented on 14.11.2023

System integrity note (Chevron Site Access support ticket 88-4412, 19.02.2024): the anti-passback function was not enabled at this installation. Tailgating is therefore not detected. The system does not photograph the cardholder. The gatehouse camera that would have covered the visitor desk was 'out of commission from 02.11.2023 to 27.11.2023' (Meridian maintenance log MTL-3391).

The Ferris badge point. The visitor badge VIS-0031 was issued in the name of A. Ferris. Mr Ferris says (D07) that the badge is habitually used by his driver, Mr Olusanya-Reid. Mr Olusanya-Reid's own staff card MSL-0166 was not presented that day, which is consistent with the account that he used a visitor badge. It is equally consistent with his not having been on site at all. The badge register (AC/2) shows VIS-0031 issued in Mr Ferris's name on eleven occasions between June and November 2023. On four of those dates Mr Ferris's own diary places him elsewhere; on three it places him at Brackenmoor Wharf; on four the diary is blank.

PART 2 — PHOTOGRAPH IMG_4471 (exhibit SA/17): EMBEDDED DATA

Property	Value
File	IMG_4471.HEIC (converted to JPEG for production)
EXIF DateTimeOriginal	2023:11:14 09:58:12
EXIF GPSLatitude / GPSLongitude	53.7768 N, 1.5352 W (within the site boundary, east compound)
EXIF Make / Model	Apple / iPhone 14 Pro
EXIF HostComputer	Ferris iPhone 14 Pro
Filesystem created (on MSL shared drive)	14 Nov 2023 13:02:41
Uploaded by (share audit log)	a.ferris
Subject matter	General view of east elevation from ground level. Three figures in middle distance, faces not resolvable.

Examiner's caveat (NDF-24-0331 s.14): EXIF data travels with the image file. If the image was transferred to Mr Ferris's device by AirDrop, message or email and then uploaded by him, the EXIF 'HostComputer' field would record the originating device, not his. The field records 'Ferris iPhone 14 Pro'. That is the device name of the handset attributed to Mr Ferris and seized on 22 November 2023. Because that handset was factory reset, I cannot confirm that the image was ever present on it. I can say the EXIF is internally consistent and shows no sign of alteration.

PART 3 — CCTV RETENTION (exhibit CCTV/1)

3.1 Eleven fixed cameras covered the site. Cameras 3, 4 and 7 covered the east elevation at levels sufficient to show the LB-7 bay.

3.2 Meridian's stated retention period is 31 days. HSE served a notice under s.20(2)(j) HSWA 1974 on 21 November 2023 requiring preservation of 'all recorded images for the period 1 to 21 November 2023'.

3.3 Meridian produced footage from cameras 1, 2, 5, 6, 8, 9, 10 and 11. It did not produce footage from cameras 3, 4 or 7. On 12 December 2023 Meridian's solicitors wrote: 'we are instructed that cameras 3, 4 and 7 were not recording during the relevant period owing to a network video recorder fault first reported on 30 October 2023.'

3.4 Meridian has produced maintenance ticket MTL-3348 dated 30 October 2023 recording a fault on 'NVR-2'. The ticket records the fault as 'closed — resolved' on 3 November 2023. Meridian has not explained the inconsistency between the closed ticket and the assertion that the cameras were not recording on 14 November 2023.

3.5 The three cameras not produced are the three that covered the collapse.

PART 4 — COVERT MONITORING OF THE WELFARE CABIN (exhibit DP/1)

Internal memo, Meridian Structures Limited. Marked 'Confidential — not for site distribution'. Disclosed in the Employment Tribunal proceedings on 14 February 2025 pursuant to an order for specific disclosure, and thereafter deployed by Meridian in support of its case in those proceedings.

From: a.ferris
To: w.tewkesbury-nnamdi (IT); b.hargreave-siddiqui (HR)
Sent: Mon 27 November 2023 07:41
Subject: BW welfare cabin

“Following the leak to the inspector I want audio and video in the BW welfare cabin and the drying room by the end of the week. Discreet. I do not want signage and I do not want it on the site induction. If anyone asks, it is asset protection following the theft of the Hilti kit in September.

Bronwen — I want to know who has been talking to the HSE and who has been talking to Coldbrook's people. Anything that comes off it goes to me directly, not to the site team. A.”

Established facts about the equipment

- Two audio-visual units were installed on 1 December 2023 and remained in place until 14 March 2024.
- No signage was displayed. No reference was made in the site induction or in any privacy notice.
- No data protection impact assessment was carried out. Meridian's Article 30 record of processing does not mention the equipment.
- Meridian's asserted lawful basis, first advanced in its ET3 response, is legitimate interests under Article 6(1)(f) UK GDPR for the purpose of 'prevention and detection of crime and protection of company assets'.
- The Hilti theft referred to in the memo occurred on 8 September 2023 and was reported to West Yorkshire Police under crime reference 13/224119/23. The equipment was recovered on 15 September 2023 and an employee was dismissed. No further thefts were reported.
- Meridian relies in the Employment Tribunal on a recording made on 9 January 2024 in which Ms Raghunathan's former colleague is said to describe her as 'out for what she can get'. Ms Raghunathan is not audible on the recording. Meridian says it goes to the credibility of her account of workplace relations.
- Ms Raghunathan applies to exclude the recording. She relies on Article 8 ECHR, s.6 of the Human Rights Act 1998, UK GDPR Articles 5, 6, 13 and 35, ss.35-40 of the Data Protection Act 2018 and rule 41 of the Employment Tribunals Rules of Procedure 2024. Meridian relies on *Vaughan v London Borough of Lewisham* and on the general principle that improperly obtained evidence is not automatically inadmissible.
- HSE separately considers whether the installation, made eleven days after Ms Raghunathan's disclosure and expressly for the purpose of identifying who had contacted the inspector, amounts to a detriment under s.47B ERA 1996 or to an attempt to interfere with an investigation.